

26SMCV01748 26SMCV01748

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Division: Civil Law and Motion

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The application is DENIED.

This is so for a number of reasons.

First, the declaration for an extension was timely filed. Plaintiff does not dispute that; plaintiff claims it was perjurious, but concedes it was filed. The clerk nonetheless entered a default at plaintiff's request some weeks later.

The clerk then sent the court a request that the default be

vacated. The clerk stated that the

default was in error due to the declaration, meaning that the clerk had not

examined the docket closely enough to see that the declaration had been filed

when plaintiff's request for entry of default was processed. The court reviewed that request and

determined that the clerk was correct insofar as the docket was concerned and

entered the requested order that same day: August 17, 2026. (The court assumes that the default was

sought by plaintiff because plaintiff did not get the declaration—for if

plaintiff did get the declaration, then it was improper to seek a default

through the bare form. Rather, plaintiff

would have had to bring a motion to strike the declaration.)

A few things.

Technically, it might be true that even an erroneous default precludes

the filing of a dispositive motion. That

would apply to Silverstein—who filed the motion on August 11—but not for

Nejadpour—who filed his motion on August 18.

But the court moves beyond that.

If the default was improperly filed, then the court sees no harm in

allowing the SMS to remain on the docket rather than having it stricken, only

to be refiled, or (more likely) to have it deemed filed on August 18. If plaintiff needs additional time to

respond, that is a different question and if the mistaken default is the

reason, the court would look with favor on such a request.

Second, even if the default were proper, relief from default would be all but certain. Even putting to one side the mandatory rule where an attorney assumes fault (which, as plaintiff points out, would not apply to Silverstein), relief from default if requested early in the case is liberally granted in furtherance of the strong public policy of resolving cases on their merits. That means that the court would almost certainly grant such a motion. But the end result given that assumption is that Silverstein would move to vacate the default, it would be granted, and he would file the SMS. We wind up in the same place.

Third, the better way to deal with an allegedly false declaration is through a motion relating to that declaration directly. If Silverstein lied about trying to contact plaintiff's counsel, then that is a significant issue. The response might be to disqualify Silverstein from representing anyone but himself and referring him to the Bar. On the other hand, if Silverstein did not lie about trying to contact plaintiff's counsel, then there is nothing wrong with the declaration and there are issues that would need to be addressed with plaintiff's counsel.

The court could be persuaded to delve deeper into that question, but the court is not prepared to resolve this by way of a swearing contest. The declaration states that Silverstein emailed plaintiff's counsel. That suggests that there is metadata out there that would prove the case on both ends. Silverstein ought to have metadata showing the outgoing email, and plaintiff's counsel ought to have metadata showing no incoming email from Silverstein on the day and time in question. If the parties want to go that route, either of them can request it, but the court warns that if it finds that Silverstein lied or plaintiff's counsel was dishonest or mistaken, consequences follow. (It is also possible that there was an honest mistake, like a typographic error in the email address.)

For now, though, the application is DENIED. The court does not anticipate hearing argument on this matter today.